

Tentative Rulings
July 16, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Rodriguez v. Ramirez, et al*, Case No. CIVSB2603109

Defendant's Motion to Strike

7/16/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** the matter so that movant may satisfy the meet-and-confer requirements.

Prior to a motion to strike, a party is required meet and confer in person or by telephone or by video conference with the party who filed the pleading for purposes of "determining whether an agreement can be reached that would resolve the objections to be raised in the motion to strike." (Code Civ. Proc. § 435.5(a) [motion to strike].)

Here, the supporting declaration does not confirm compliance with the meet-and-confer requirements. (See Jozana Decl.) Rather, the declaration simply unilaterally concludes that counsel "attempted to meet and confer, and it attaches a copy of an email. (Jozana Decl., ¶¶4-5 & Exh. B.) No statements were provided setting forth the actual attempt to meet and confer "in person or by telephone or by video conference" that might constitute that purported attempt. Thus, the Court would continue the matter to allow a supplemental declaration showing compliance. Defendant will file a supplemental declaration at least ten court days before the next hearing.

15. *Keating II v. Loma Linda University Medical Cntr., et al*, Case No. CIVSB2507211

Defendant's Demurrer to First Amended Complaint

7/26/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** the matter so that movant may satisfy the meet-and-confer requirements.

Prior to a demurrer, a party is required meet and confer in person or by telephone or by video conference with the party who filed the pleading for purposes of "determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41(a) [demurrer].)

Here, the supporting declaration does not confirm compliance with the meet-and-confer requirements. (See Demers Decl.) Rather, the declaration sets out that a meet-and-confer letter and, later, email went out with no response. (Demers Decl., ¶¶3-4.) It fails to indicate any attempt to contact in person, by telephone, or by video or any frustrated attempt at such compliance. Thus, the Court would continue the matter to allow a supplemental declaration showing compliance. Defendant will file a supplemental declaration at least ten court days before the next hearing.
